

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-

SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

**COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND
DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I

ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida, doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #70, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, and the Plaintiff, are annual.
5. Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, natural

persons, entered into a rental agreement to reside at 900 9th Ave East, Lot #70, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the Lease Agreement is attached to this Complaint as Plaintiff's "Exhibit A".

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #70, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

7. Defendant, SYLVIA HERNANDEZ AVALOS, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #70, Palmetto, Florida, 34221.

8. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

9. The residents of the community, including Defendants, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723.

10. Plaintiff, as landlord, leased to Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, LOT #70, of the above stated mobile home park at a monthly rental fee.

11. For the year 2025, the monthly rent is the sum of \$821.00.

12. Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, are in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$2,538.61 which represents the months of December 2024 through January 2025 including late fees.

13. On February 7, 2025, Plaintiff served on Defendants, SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #70, Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified

the Defendants that if they failed to timely pay the rent due, that the Plaintiff would evict the Defendant, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "B".

14. On February 7, 2025, Plaintiff also served on Defendants, SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, pursuant to Fla. Stat. § 723.061(4).

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for possession of the premises.

16. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #70 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

18. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

19. Plaintiff has retained the law firm of William C. Price, III, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

20. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

21. The total lot rental amounts due as of February 7, 2025, which must be paid into the registry of the Court, is \$2,538.61 plus \$821.00 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession

of the premises together with costs and reasonable attorney's fees against Defendants, SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II

ACTION FOR DAMAGES (RENTAL)

22. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

23. Plaintiff re-alleges the facts contained within paragraphs 1 through 21 as though fully set forth herein.

24. Plaintiff, as landlord, leased to Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, Lot #70, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$821.00.

25. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

26. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendants, SYLVIA HERNANDEZ AVALOS and FRANK J. AVALOS, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession (Eviction) and Damages has been furnished to a private process server for service upon the Defendants, SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #70, Palmetto, Florida, 34221, on this 21st day of February, 2025.



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